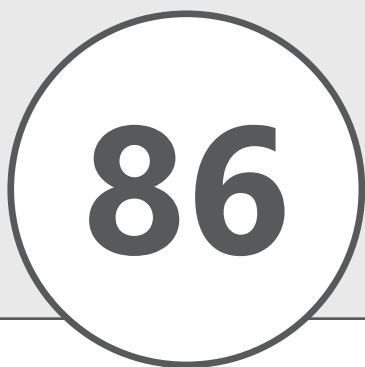




Amendment 86: Requirements for Off-Cycle Congressional Redistricting

Placed on the ballot by citizen initiative • Passes with 55 percent of the vote

Amendment 86 proposes amending the Colorado Constitution to:

- require the Colorado Independent Congressional Redistricting Commission and the Colorado Supreme Court to review and approve any proposed changes to congressional districts outside of a scheduled redistricting year; and
- prohibit off-cycle changes to congressional districts that intentionally favor any political party or unnecessarily divide communities.

What Your Vote Means

YES A “yes” vote on Amendment 86 requires the Colorado Independent Congressional Redistricting Commission to approve any new congressional districts proposed outside of a scheduled redistricting year.

NO A “no” vote on Amendment 86 continues the current requirements for changing congressional districts every ten years.

Summary and Analysis of Amendment 86

What is congressional redistricting?

Colorado currently has eight congressional districts, which are regions of the state divided to be equal in population and meet other criteria. One person is elected from each of the eight districts to represent Colorado in the U.S. House of Representatives. Congressional redistricting is the process of dividing the state into congressional districts. It usually occurs after a census, which is when all the people in the United States are counted every ten years. Using the state’s population of 5.8 million as of the 2020 census, the current required congressional district population size is 721,714 people.

How is redistricting done in Colorado?

In 2018, Colorado voters amended the Colorado Constitution to create the Colorado Independent Congressional Redistricting Commission (commission). Every ten years, a new commission is formed and is charged with using the population figures from the U.S. Census Bureau, specific legal criteria, and public input from around the state to draw Colorado’s congressional districts. The last commission was formed and completed its work in 2021, and the next commission will meet and create new districts in 2031.

What is off-cycle redistricting?

Off-cycle redistricting means changing the boundaries of congressional districts between the regular redistricting periods. The current redistricting process, protected in the Colorado Constitution, is designed for redrawing congressional and legislative districts immediately following the census and does not establish a process specifically for off-cycle redistricting. Since 2025, at least ten states have changed their congressional district maps through off-cycle redistricting.

What does Amendment 86 do?

Amendment 86 requires that any off-cycle redistricting, if it were to occur, be approved by the commission and adopted by the Colorado Supreme Court. Before approving any changes, the commission must hold at least three public hearings. The measure also prohibits off-cycle changes to congressional districts that intentionally favor a political party or unnecessarily divide communities of interest. Any such redistricting efforts would require the use of population figures from the most recent census or another data source.

Argument For Amendment 86

- 1) Amendment 86 protects public participation in any off-cycle changes to congressional districts and ensures that changes are reviewed through a fair and transparent process. Requiring the commission to review districts, and not allowing districts to favor a single political party, keeps partisan politics out of the process. This affirms the voters' intent in creating an independent commission, which was overwhelmingly approved in a 2018 statewide election. Across the nation, politicians have attempted to change districts in their favor with limited public input. Amendment 86 safeguards the redistricting process in Colorado.

Argument Against Amendment 86

- 1) If Colorado voters ever want to enact new congressional districts in an off-cycle redistricting year, this measure stands in their way. Whether new districts are in response to partisan redistricting in other states, changes in political priorities, or other concerns with Colorado's congressional districts, this measure creates an unnecessary constitutional barrier. Further, if voters feel that the districts created by the commission during the regularly scheduled redistricting no longer meet the needs of the state, that same commission should not play a role in the process. Voters should always have the final word on whether Colorado's congressional districts still reflect the state's needs.

Information about the organizations supporting and opposing this measure is available on the Colorado Secretary of State's website:

www.coloradosos.gov/pubs/elections/Initiatives/ballot/contacts/2026.html

Fiscal Impact of Amendment 86**State Spending**

The measure increases costs in the Legislative Department by about \$370,000 in any year that the commission must convene and review changes to congressional maps outside of its usual redistricting schedule. The costs are to staff the commission, provide reimbursement for commissioners, and hire legal counsel. The Judicial Department will also have a small workload increase to review any new maps.